

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. (SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)

I. (a) PLAINTIFFS Elham Salemi (b) County of Residence of First Listed Plaintiff <u>Denver County, Colorado</u> <i>(EXCEPT IN U.S. PLAINTIFF CASES)</i> (c) Attorneys <i>(Firm Name, Address, and Telephone Number)</i> Darold W. Killmer, Killmer, Lane & Newman, LLP 1543 Champa Street, Suite 400 Denver, CO 80202		DEFENDANTS Colorado Public Employees' Retirement Association, Tim Moore, and Angela Setter County of Residence of First Listed Defendant <u>Denver County, Colorado</u> <i>(IN U.S. PLAINTIFF CASES ONLY)</i> NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE TRACT OF LAND INVOLVED. Attorneys <i>(If Known)</i>																									
II. BASIS OF JURISDICTION <i>(Place an "X" in One Box Only)</i> ☐ 1 U.S. Government Plaintiff ☒ 3 Federal Question <i>(U.S. Government Not a Party)</i> ☐ 2 U.S. Government Defendant ☐ 4 Diversity <i>(Indicate Citizenship of Parties in Item III)</i>		III. CITIZENSHIP OF PRINCIPAL PARTIES <i>(Place an "X" in One Box for Plaintiff and One Box for Defendant)</i> <i>(For Diversity Cases Only)</i> <table border="1" style="width:100%; border-collapse: collapse;"><tr><td></td><td>PTF</td><td>DEF</td><td></td><td>PTF</td><td>DEF</td></tr><tr><td>Citizen of This State</td><td>☐ 1</td><td>☐ 1</td><td>Incorporated or Principal Place of Business In This State</td><td>☐ 4</td><td>☐ 4</td></tr><tr><td>Citizen of Another State</td><td>☐ 2</td><td>☐ 2</td><td>Incorporated and Principal Place of Business In Another State</td><td>☐ 5</td><td>☐ 5</td></tr><tr><td>Citizen or Subject of a Foreign Country</td><td>☐ 3</td><td>☐ 3</td><td>Foreign Nation</td><td>☐ 6</td><td>☐ 6</td></tr></table>			PTF	DEF		PTF	DEF	Citizen of This State	☐ 1	☐ 1	Incorporated or Principal Place of Business In This State	☐ 4	☐ 4	Citizen of Another State	☐ 2	☐ 2	Incorporated and Principal Place of Business In Another State	☐ 5	☐ 5	Citizen or Subject of a Foreign Country	☐ 3	☐ 3	Foreign Nation	☐ 6	☐ 6
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V. ORIGIN <i>(Place an "X" in One Box Only)</i> ☒ 1 Original Proceeding ☐ 2 Removed from State Court ☐ 3 Remanded from Appellate Court ☐ 4 Reinstated or Reopened ☐ 5 Transferred from another district <i>(specify)</i> ☐ 6 Multidistrict Litigation ☐ 7 Appeal to District Judge from Magistrate Judgment																											
VI. CAUSE OF ACTION Cite the U.S. Civil Statute under which you are filing <i>(Do not cite jurisdictional statutes unless diversity)</i> : <u>43 U.S.C. 2000; 42 U.S.C. 1983; 42 U.S.C. 1981; 29 U.S.C. 2615(a); 29 U.S.C. 206(d)(1)</u> Brief description of cause: ☐ AP Docket Gender discrimination under Title VII; Retaliation under Title VII; National origin discrimination under 1981; Retaliation under 1981; First Amendment retaliation under 1983; Family Medical Leave Act; Equal Pay Act																											
VII. REQUESTED IN COMPLAINT: ☐ CHECK IF THIS IS A CLASS ACTION UNDER F.R.C.P. 23 DEMAND \$ JURY DEMAND: ☒ Yes ☐ No																											
DATE October 16, 2013 SIGNATURE OF ATTORNEY OF RECORD s/ Darold W. Killmer																											

FOR OFFICE USE ONLY

RECEIPT # _____ AMOUNT _____ APPLYING IFP _____ JUDGE _____ MAG. JUDGE _____